

File No.: EXP202208420

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 12/07/2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible breach of the provisions of Articles 13 of the GDPR and 6.1 of the GDPR.

The reasons supporting the complaint are as follows:

The complainant states that they are a tenant of a room in a property owned by the respondent, with the right to access common areas, and that upon returning from an absence of several days, they observe that a surveillance camera has been installed in the hallway of the property that apparently records video and audio, which moves 360 degrees according to detected movement, that is, it records when someone enters and exits the apartment and also when the complainant leaves their room, and that they have not given their consent for the installation of said camera.

Along with the complaint, the complainant provides:

- A simple informative note of the registration of the property in the Property Registry, in the name of the respondent for 75%.
- A burofax addressed to the respondent requesting the removal of the camera, with the result of "refused."
- Images of the interior of the property where the camera is located, showing that it is installed in the ceiling.

The complainant does not provide a lease agreement.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

No response has been received to this forwarding letter, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and which was collected by the respondent on the two occasions when the forwarding was made: on 18/08/2022 and 26/10/2022 respectively, according to the delivery certification in the file.

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THIRD: On October 12, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On April 13, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 13 of the GDPR and Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), on 27/04/2023, and after the deadline for submitting allegations had passed, it was confirmed that no allegations had been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility

attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,

PROVEN FACTS

FIRST: It is recorded, according to the documentation in the file, that in the property where both the complainant and the respondent reside, a surveillance camera has been installed in the ceiling, which apparently records video and audio, and moves 360 degrees according to detected movement.

SECOND: It is recorded, according to the documentation in the file, that there is no informative sign warning of the existence of video cameras.

LEGAL GROUNDS

I

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction;”

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (image of natural persons) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

III

Article 18, paragraph 4 of the Spanish Constitution (CE) states: “The law shall limit the use of computing to guarantee the honor and personal and family privacy of citizens and the full exercise of their rights.”

Recital number 40 of the GDPR indicates that for processing to be lawful, personal data must be processed on one of the legal bases established by law (...).

Therefore, the "data processing" carried out with the camera(s) installed inside the property must be justifiable under the so-called legal bases, that is, it must be possible to demonstrate the lawfulness of the processing in the list of situations or specific assumptions in which it is possible to process

personal data.

Article 6.1 of the GDPR establishes the circumstances that allow for the consideration of the processing of personal data as lawful.

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) of the first subparagraph shall not apply to processing carried out by public authorities in the performance of their tasks."

The presence of cameras inside the dwelling affects a space that ceases to be "exclusive" to the owner, becoming subject to enjoyment by a third party whose rights must be respected, including the right to privacy and the right to "personal data protection."

Therefore, the "personal and domestic" scope in capturing images from within the private home (Article 22.5 LOPDGDD) disappears when the use and enjoyment of the private dwelling is temporarily ceded to a third party, thus becoming an area reserved for their strictest personal and family privacy, also protected by data protection regulations, which generally do not allow for the capturing and processing of such data.

The complaint is based on the alleged unlawfulness of the installation of a video surveillance camera in the hallway of the property where the complainant claims to have a room rental contract (not provided in the complaint), with the right to use common areas, owned 75% by the respondent, who also resides in the dwelling, without having requested their consent and without having removed it after being requested by the complainant via burofax.

As evidence of these assertions, the complainant submitted 2 photographs showing the existence of a device on the ceiling inside the dwelling, although it cannot be precisely determined from these photographs whether it corresponds to a hallway, an entrance hall, or some other room, although it is clear that it is inside, with a radiator, a window, and two doors visible in the photographs.

The right to privacy, let us remember, consists of guaranteeing the free development of each individual's private life, without "interference from third parties." The presence of interior cameras not only implies excessive control over the...

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entries/exits of the resident and/or companions, but rather a "data processing" that is not justified in the present file.

In this regard, the Constitutional Court states in STC 22/1984 that the right to the inviolability of the home constitutes a genuine fundamental right of the person, established, as we have said, to guarantee the sphere of privacy of this individual within the space that the person themselves chooses, which must be characterized precisely by being exempt or immune to invasions or external aggressions, from other individuals or from public authority.

In this sense-- Administrative Litigation Judgment No. 2923/2020, Superior Court of Justice of Catalonia, Contentious Chamber, Section 3, Rec 237/2019 of July 2, 2020--.

"As stated in STC 10/2002, of January 17 (FFJJ 5 and 6), cited by the Prosecutor and by the appellant

in protection, and recalled later in STC 22/2003, of February 10, the constitutional norm that proclaims the inviolability of the home and the prohibition of entry and home searches (art. 18.2 CE), despite the autonomy that the Spanish Constitution recognizes to both rights, constitutes a manifestation of the preceding norm (art. 18.1 CE) that guarantees the fundamental right to personal and family privacy. Thus, if the right proclaimed in art. 18.1 CE aims to protect a reserved sphere of individuals' lives excluded from the knowledge of third parties, whether they are public powers or private individuals, against their will, the right to home inviolability protects "a specific spatial area" since in it individuals exercise their most intimate freedom, free from all subjection to social uses and conventions, being the object of protection of this right both the physical space itself and what emanates from the person and their private sphere. Therefore, we have affirmed that the constitutional protection of the home is an instrumental protection that defends the areas in which the private life of the person develops. Among other consequences, such instrumental character determines that the constitutional concept of home has a broader scope than the private legal or administrative legal concept of home and does not admit "reductionist conceptions" (see all SSTC 94/1999, of May 31, FJ 5, and 10/2002, of January 17, FJ 6 in fine). For this reason, we have stated in legal foundation 8 of the aforementioned STC 10/2002 that "the essential feature that defines the home for the purposes of the protection provided by art. 18.2 CE lies in its suitability to develop private life in it and in its specific destination for such development, even if it is eventual.

This means, firstly, that its destination or use constitutes the essential element for the delimitation of the constitutionally protected spaces, so that, in principle, their location, physical configuration, whether movable or immovable, the existence or type of legal title that enables its use, or, finally, the intensity and periodicity with which private life is developed therein are irrelevant. Secondly, although the effective development of private life is the determining factor of the specific suitability for the space in which it is developed to be considered a home, it does not necessarily follow that such suitability cannot be inferred from some of these non-...

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...or others, to the extent that they represent objective characteristics according to which it is possible to delineate the spaces that, in general, can and usually are used to develop private life." Furthermore, "the very instrumental nature of constitutional protection of the home concerning the protection of personal and family privacy requires that, regardless of the physical configuration of the space, its external signs clearly reveal the will of its owner to exclude that space and the activities carried out therein from the knowledge and intrusions of third parties." From this, we derived the consequence, declaring the unconstitutionality of the provisions in Article 557 of the Criminal Procedure Act that "the rooms of hotels can constitute the domicile of their guests, since, in principle, they are suitable places, due to their own characteristics, for private life to be developed therein, given that the usual purpose of hotel rooms is to carry out activities that can be generically framed within private life" (*the bold and underlined text belongs to this body).

It is irrelevant that, in the present case, the respondent lives with the claimant in that dwelling, as, in any case, it still constitutes their own domicile, even if shared.

For all the reasons stated in the examined case, none of the legal bases of Article 6.1 of the GDPR that could legitimize the processing are present.

Moreover, the installation of a video camera, even when it is demonstrated that it is not legitimized, entails the unavoidable obligation to inform about its presence through an informative device, in a sufficiently visible location, identifying at least the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR.

IV

It is considered that the facts presented violate the provisions established in Articles 6.1 and 13 of the GDPR, which could imply the commission of respective infringements typified in Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of the data subjects under Articles 12 to 22; (...).”

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

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“According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall be subject to a three-year statute of limitations for infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

- b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)

- h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this Organic Law.

(...)”

VI

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Therefore, it is appropriate to scale the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, and with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

In the present case, the following facts have been taken into account, in particular, as aggravating factors:

- The nature, severity, and duration of the infringement (Article 83.2.a GDPR), considering that, as already noted, the home is inviolable, and the installation of video cameras implies a significant violation of the privacy of the individuals living therein.

For all these reasons, it is considered that the corresponding sanction is an administrative fine. It should be noted that the voluntary payment of the proposed amounts does not exempt from proving the regularization of the video surveillance system in accordance with the current regulations.

VII

Possible measures

In accordance with the provisions of Article 58.2 d) of the GDPR, each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time frame...”. It is indicated that the respondent must proceed, within 30 days from the receipt of this resolution, to

- remove the camera or video camera system from the current location.

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It is warned that failure to comply with the requirements of this body may be considered an

administrative infraction in accordance with the provisions of the GDPR, classified as an infraction in its articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, a sanction of 5,000 euros (FIVE THOUSAND EUROS) for an infraction of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, and a fine of 300 euros (THREE HUNDRED EUROS) for an infraction of Article 13 of the GDPR, also classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to B.B.B.

THIRD: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 30 days from the receipt of this resolution, to prove that they have proceeded to:

- the removal of the camera or video camera system from the current location.

FOURTH: To warn the sanctioned party that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the administrative contentious appeal. If the Agency does not have knowledge of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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